

Court No. - 40

Case :- WRIT - C No. - 15712 of 2021

Petitioner :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- J.P. International Sports Ltd. And Another

Counsel for Petitioner :- Abhishek Srivastava, Sr. Advocate Shri G.K. Singh

Counsel for Respondent :- Rohan Gupta

Hon'ble Manoj Misra, J.

Hon'ble Jayant Banerji, J.

Heard Sri G.K. Singh, learned senior counsel, assisted by Sri Abhishek Srivastava for the petitioners; and Sri Rohan Gupta for the respondent no.2.

According to the petitioners, in respect of supply of electricity to the respondent no.1 from 27.10.2011 to 20.03.2012, a dispute arose in respect of demand raised by the petitioners. This dispute was resolved by a Committee on the basis of clause 5.7 of the U.P. Electricity Code, 2005 and, on the basis of the report of the Committee dated 09.11.2015, a bill was raised. Against the bill, so raised, a complaint was filed by the respondent no.1 before the Consumer Grievance Redressal Forum in the month of September, 2016. The prayer in the complaint was to issue orders to the Executive Engineer/competent authority to correct the bill for the total period starting from 27.10.2011 to 20.03.2012, that is when there was no meter installed in the premises of the complainant, as per clause 5.7 of the Electricity Supply Code, 2005. It was prayed that as there was no meter installed at the premises of the complainant during the said period, the bill should be on the basis of average of three months consumption after installation of meter. The Forum dismissed the complaint of the first respondent against which the first respondent filed an application before the Ombudsman. The Ombudsman, by its order dated 28.12.2018, remanded the matter back to the Forum. Pursuant to the remand, on 14.06.2019, the Forum again confirmed its earlier order. Thereafter, an application was moved by the first respondent for recall of the order and restoration of the proceedings before the Forum, which was allowed by order dated 05.03.2020 on the ground that notice was not sent to the first respondent of the proceedings after remand. Thereafter, the Forum again examined the matter and passed the impugned order dated 22.03.2021. The operative portion of which, is in two parts. The first part of the order implements the report of the Committee dated 09.11.2015 for the period of consumption starting from 27.10.2011 to 23.11.2011. But the second part provides that if the first respondent/ complainant deposits the amount payable in respect of the period 27.10.2011 to 23.11.2011 within one month, the consumption for the remaining period would be assessed on the basis of reduced load.

It is the second part of the order that the petitioner is aggrieved with.

The contention of the learned counsel for the petitioners is that if the electricity supply is made without a meter, clause 5.7 of the Code gets attracted. As per which, the bill is to be raised on the basis of three months average consumption after installation of the meter. It has been submitted that the Committee submitted the report on that very basis therefore, there

was no justification to further reduce the consumption.

The matter requires consideration.

Sri Rohan Gupta, who has accepted notice on behalf of respondent no.1, prays for and is allowed to weeks time to file counter-affidavit. Two weeks, thereafter, shall be for the petitioners to file rejoinder-affidavit.

List this matter on 01st September, 2021.

Till the next date of listing, the effect and operation of the order dated 22.03.2021 to the extent it directs for re-assessment of the demand with reduced load shall remain stayed.

Order Date :- 26.7.2021

Sunil Kr Tiwari

Court No. - 39

Case :- WRIT - C No. - 15712 of 2021

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Respondent :- J.P. International Sports Ltd. And Another

Counsel for Petitioner :- Abhishek Srivastava, Sr. Advocate
Shri G.K. Singh

Counsel for Respondent :- Rohan Gupta

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Deepak Verma, J.

List after three weeks.

Interim order, if any granted earlier, is extended till the next date of listing.

Order Date :- 1.9.2021

Nitin Verma

(Deepak Verma, J.) (Manoj Kumar Gupta, J.)

Court No. - 40

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Shri G.K. Singh

Counsel for Respondent :- Rohan Gupta

Hon'ble Manoj Misra, J.

Hon'ble Jayant Banerji, J.

Due to paucity of time, the matter could not be taken up.

List this case after four weeks.

Interim order, if any, granted earlier is extended till the next date of listing.

Order Date :- 22.9.2021

A. V. Singh

Court No. - 3

Case :- WRIT - C No. - 15712 of 2021

Petitioner :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- J.P. International Sports Ltd. And Another

Counsel for Petitioner :- Abhishek Srivastava, Sr. Advocate Shri G.K. Singh

Counsel for Respondent :- Rohan Gupta

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Shri Anurag Khanna, learned Senior Advocate assisted by Shri Rohan Gupta, learned counsel for the applicant/respondent no.1 submits that the writ petition is listed tomorrow before regular Bench and it is only modification application that is listed today before this Bench for modification of the interim order dated 26.07.2021.

Shri G.K. Singh, learned Senior Advocate assisted by Shri Abhishek Srivastava, learned counsel for the petitioners submits that the pleadings in this case have been exchanged between the parties, therefore, the matter may be heard finally by the Bench before whom the case is listed tomorrow.

In view of the aforesaid, we release this case.

Let the matter be placed before the appropriate Bench.

Order Date :- 28.2.2023

Ankit.

Court No. - 40

Case :- WRIT - C No. - 15712 of 2021

Petitioner :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- J.P. International Sports Ltd. And Another

Counsel for Petitioner :- Abhishek Srivastava, Sr. Advocate Shri G.K. Singh

Counsel for Respondent :- Rohan Gupta

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

As prayed, list this matter on 3.4.2023.

Order Date :- 28.3.2023

SP/

Court No. - 40

Case :- WRIT - C No. - 15712 of 2021

Petitioner :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- J.P. International Sports Ltd. And Another

Counsel for Petitioner :- Abhishek Srivastava, Sr. Advocate Shri G.K. Singh

Counsel for Respondent :- Rohan Gupta

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

As prayed, list this matter on 10.04.2023 in top ten cases.

Order Date :- 3.4.2023

A. Mandhani

Court No. - 40

Case :- WRIT - C No. - 15712 of 2021

Petitioner :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- J.P. International Sports Ltd. And Another

Counsel for Petitioner :- Abhishek Srivastava, Sr. Advocate Shri G.K. Singh

Counsel for Respondent :- Rohan Gupta

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

List this matter on 13.4.2023 in top ten of the cases.

Order Date :- 10.4.2023

SP/

Court No. - 40

Case :- WRIT - C No. - 15712 of 2021

Petitioner :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- J.P. International Sports Ltd. And Another

Counsel for Petitioner :- Abhishek Srivastava, Sr. Advocate Shri G.K. Singh

Counsel for Respondent :- Rohan Gupta

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

List this matter on 17.4.2023.

Order Date :- 13.4.2023

SP/

Court No. - 40

Case :- WRIT - C No. - 15712 of 2021

Petitioner :- Pashchimanchal Vidyut Vitran Nigam Ltd. And
Another

Respondent :- J.P. International Sports Ltd. And Another

Counsel for Petitioner :- Abhishek Srivastava, Sr. Advocate Shri
G.K. Singh

Counsel for Respondent :- Rohan Gupta

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

On the joint request of parties, the matter is adjourned.

Put up on 24.04.2023.

Order Date :- 17.4.2023

A. Pandey

Court No. - 40

Case :- WRIT - C No. - 15712 of 2021

Petitioner :- Pashchimanchal Vidyut Vitran Nigam Ltd. And Another

Respondent :- J.P. International Sports Ltd. And Another

Counsel for Petitioner :- Abhishek Srivastava, Sr. Advocate Shri G.K. Singh

Counsel for Respondent :- Rohan Gupta

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

The supplementary counter affidavit filed today is taken on record.

Shri G.P. Singh, learned Senior Counsel assisted by Shri Abhishek Srivastava may file objection, if any, on or before the date fixed in the matter.

List this matter on 1.5.2023.

Order Date :- 24.4.2023

SP/